

TRACECA Maritime Safety and Security
IMSAS workshop Kiev (Ukraine)

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IMSAS workshop Kiev

Agenda

1	Introduction
2	Background to IMSAS
3	III Code: Common areas
4	III Code: Flag State obligations
5	III Code: Coastal State obligations
6	III Code: Port State obligations
7	Framework for the audit
8	Audit preparation and follow-up
9	Summary and conclusions

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2. Background to IMSAS

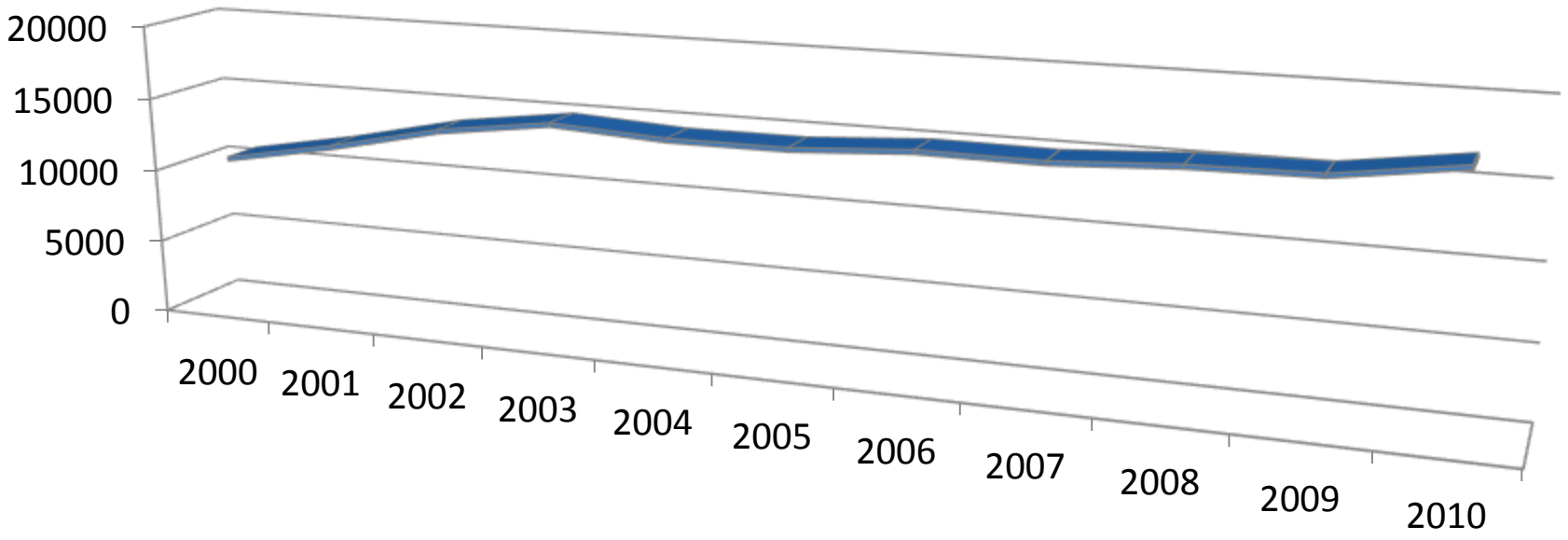
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Is there a need for IMO to address implementation?

Flag States seem to have problems in enforcing safety standards

Source: Tokyo MoU

Ship inspections with deficiencies – Tokyo PSC MoU

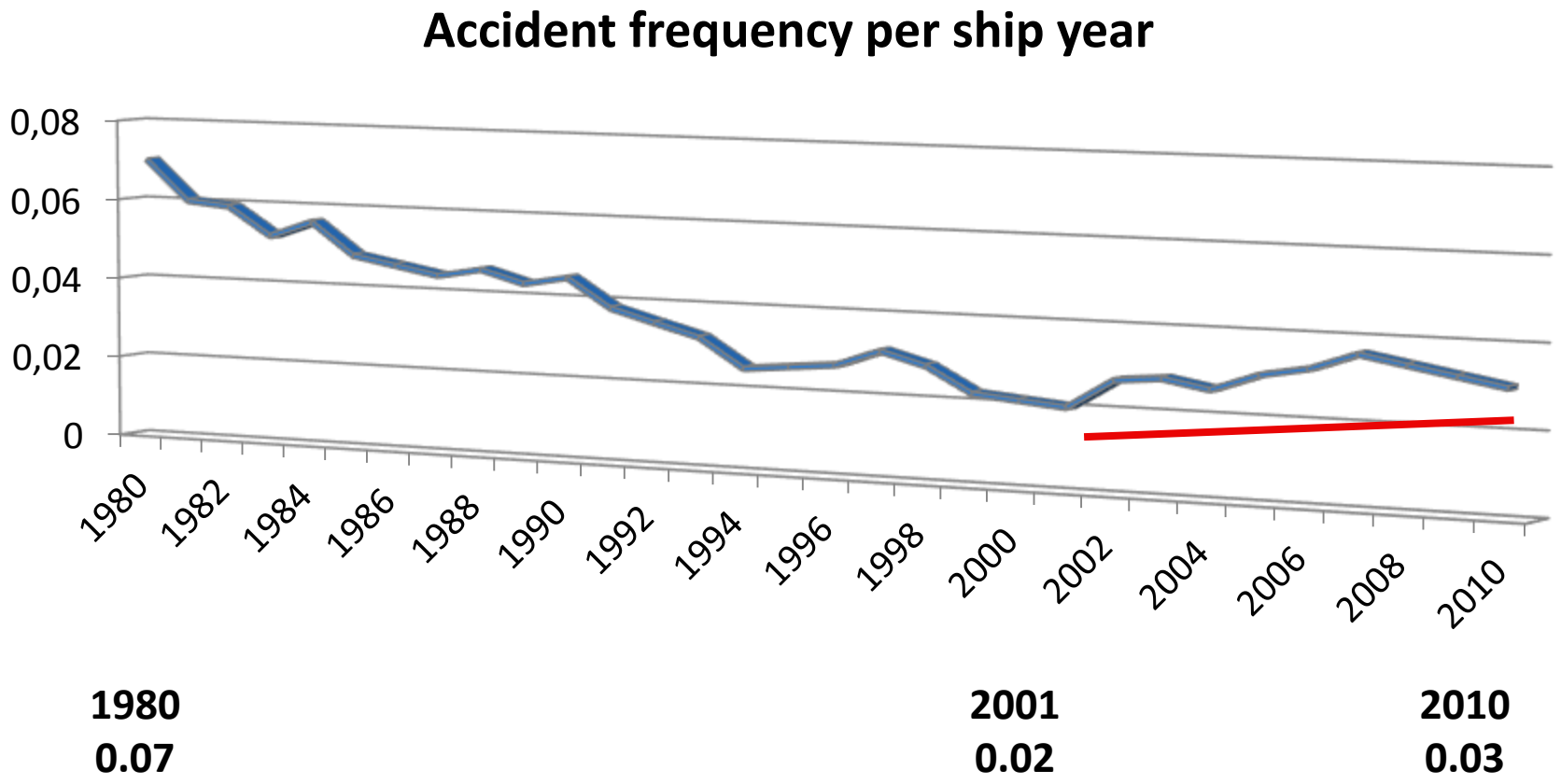


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Is there a need for IMO to address implementation?

Accident numbers are on the way up again

Source: DNV



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Is there a need for IMO to address implementation?

IMO member States do not always comply with their obligations

- Reporting to IMO



INTERNATIONAL MARITIME ORGANIZATION

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SUB-COMMITTEE ON FLAG STATE IMPLEMENTATION
19th session
Agenda item 4

FSI 19/4
19 November 2010
Original: ENGLISH

MANDATORY REPORTS UNDER MARPOL

Analysis and evaluation of deficiency reports and mandatory reports under MARPOL for 2009

Note by the Secretariat

SUMMARY

Executive summary:	This document provides a summary on mandatory reports under MARPOL for 2009 submitted by 39 Parties to MARPOL and one Associate Member in accordance with MEPC/Circ.318
Strategic direction:	2
High-level action:	2.1.1
Planned output:	2.1.1.6
Action to be taken:	Paragraph 10
Related documents:	FSI 18/4, FSI 18/20; and MEPC/Circ.318

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Is there a need for IMO to address implementation?

Why is the III Code necessary?

Source: IMO FSI 19/14

- Reporting to IMO

ANNEX 2

STATUS OF MANDATORY REPORTS UNDER MARPOL FROM 2005 TO 2009
(as of 18 November 2010)

COUNTRY	MARPOL Annexes I and II Date of entry into force for country	2005	2006	2007	2008	2009
Albania	9 April 2007					
Algeria	1 May 1989					
Angola	4 January 2002					
Antigua and Barbuda	29 April 1988					
Argentina	1 December 1993	✔	✔	✔	✔	✔
Australia	14 January 1988	✔	✔	✔	✔	✔
Austria	27 August 1988					
Azerbaijan	16 October 2004					
Bahamas	2 October 1983					✔
Bahrain	27 July 2007					

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Is there a need for IMO to address implementation?

Why is the III Code necessary?

Source: IMO FSI 19/14

- Reporting to IMO

1 MEPC/Circ.318 contains "Formats for a mandatory reporting system under MARPOL 73/78" adopted by MEPC 38 to facilitate communication to the Organization of information called for by articles 8, 11 and 12; regulation 38 of Annex I; regulation 18 of Annex II, regulation 12 of Annex IV, regulation 7 of Annex V, and regulation 17 of Annex VI of MARPOL. The data from these reports are useful to the Organization to assess the effectiveness of the application of the Convention and for statistical purposes. In accordance with MEPC/Circ.318, Parties are requested to submit their annual reports by 30 September of the following year.

2 The Sub-Committee at its eighteenth session noted document FSI 18/4 (Secretariat) which contained a summary of mandatory reports by Parties to MARPOL for the year 2008, which also included as annex a tabular list of Parties, showing the date each became Party to MARPOL and which Parties had submitted reports in each of the last five years, and which Parties had failed to do so.

3 On the basis of the information provided in document FSI 18/4, the Sub-Committee concluded that the rate of reporting was still low, as was also recognized at every session of the Sub-Committee since FSI 10.

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Is there a need for IMO to address implementation?

Why is the III Code necessary?

Source: IMO III 1/4

- Reporting to IMO

ANNEX 2

STATUS OF MANDATORY REPORTS UNDER MARPOL FROM 2008 TO 2012
(as of 6 May 2014)

Party	MARPOL Annexes I and II Date of entry into force for the Party	2008	2009	2010	2011	2012
Albania	9 April 2007					
Algeria	1 May 1989					
Angola	4 January 2002					
Antigua and Barbuda	29 April 1988					✓
Argentina	1 December 1993	✓	✓	✓	✓	✓
Australia	14 January 1988	✓	✓	✓	✓	✓
Austria	27 August 1988					
Azerbaijan	16 October 2004					
Bahamas	2 October 1983		✓	✓		
Bahrain	27 July 2007					
Bangladesh	18 March 2003					

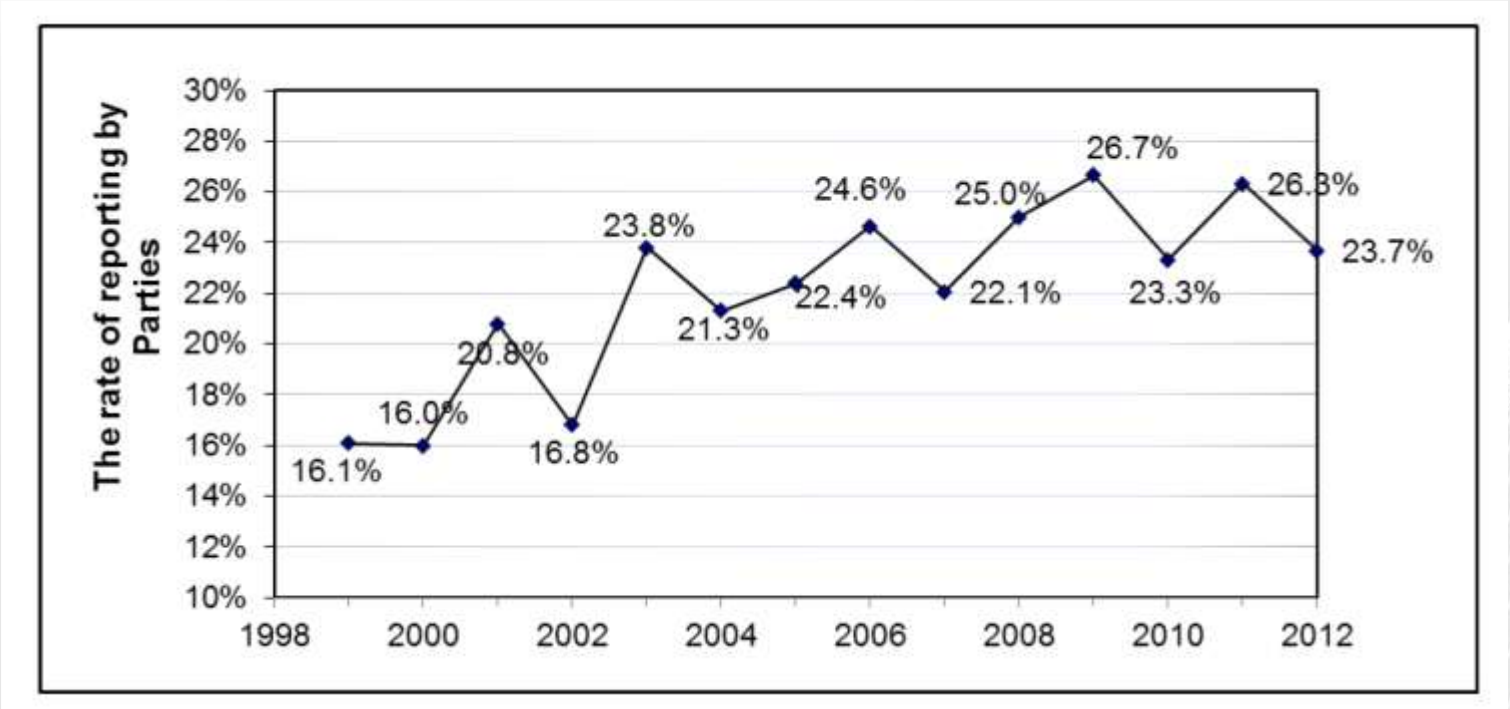
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Is there a need for IMO to address implementation?

Why is the III Code necessary?

Source: IMO III 1/4

- Reporting to IMO
  - Despite low reporting rates – the item is not covered by III any longer



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Is there a need for IMO to address implementation?

www.ics-shipping.org/docs/flag-state-performance-table

Why is the III Code necessary?

- Benchmarking of flag State performance



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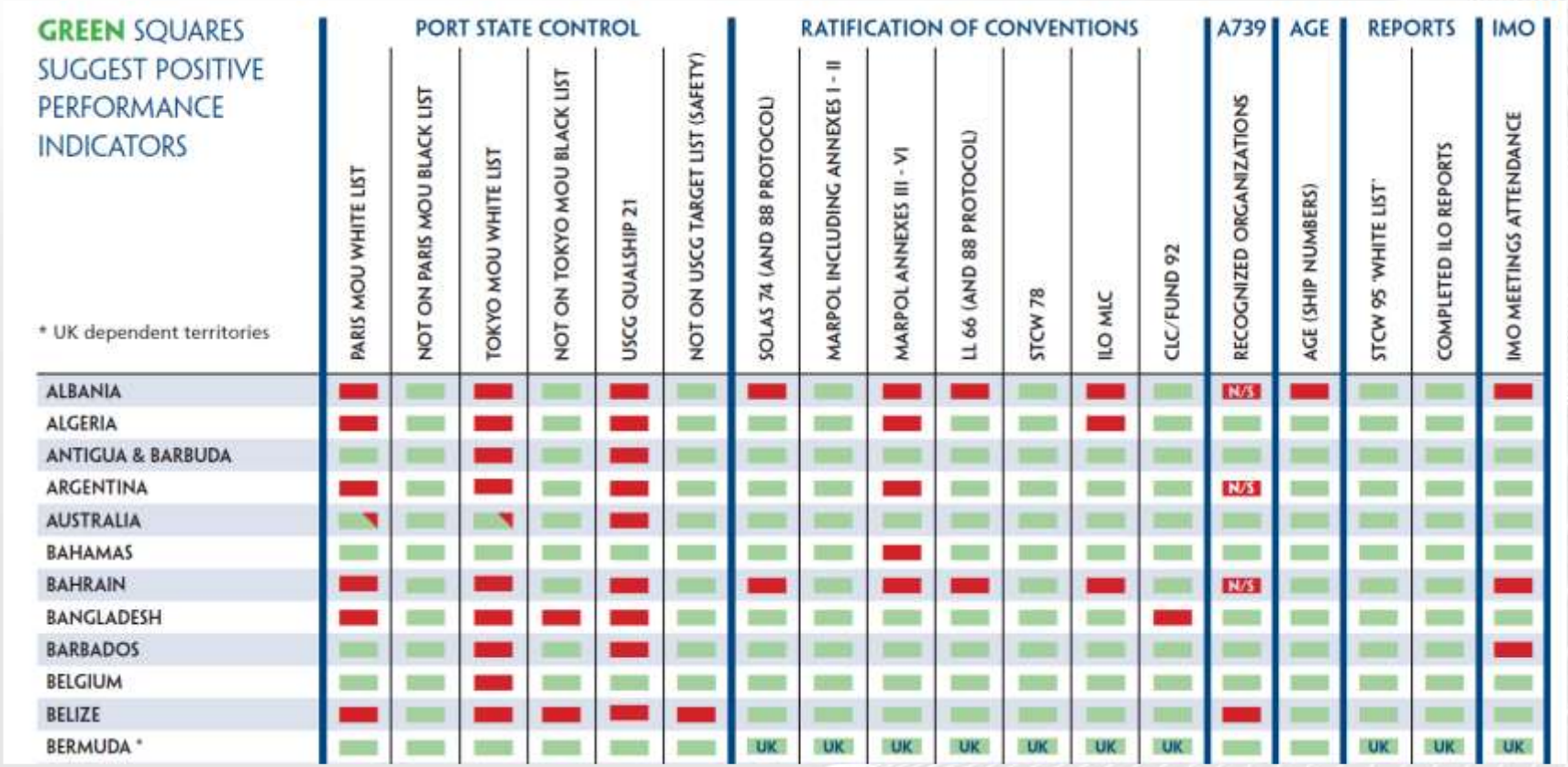
Is there a need for IMO to address implementation?

www.ics-shipping.org/docs/flag-state-performance-table

Why is the III Code necessary?

- Benchmarking of flag State performance

N/S – no data submitted to IMO



GREEN SQUARES SUGGEST POSITIVE PERFORMANCE INDICATORS

* UK dependent territories

	PORT STATE CONTROL						RATIFICATION OF CONVENTIONS							A739	AGE	REPORTS		IMO
	PARIS MOU WHITE LIST	NOT ON PARIS MOU BLACK LIST	TOKYO MOU WHITE LIST	NOT ON TOKYO MOU BLACK LIST	USCG QUALSHIP 21	NOT ON USCG TARGET LIST (SAFETY)	SOLAS 74 (AND 88 PROTOCOL)	MARPOL INCLUDING ANNEXES I - II	MARPOL ANNEXES III - VI	LL 66 (AND 88 PROTOCOL)	STCW 78	ILO MLC	CLC/FUND 92	RECOGNIZED ORGANIZATIONS	AGE (SHIP NUMBERS)	STCW 95 'WHITE LIST'	COMPLETED ILO REPORTS	IMO MEETINGS ATTENDANCE
ALBANIA	■		■		■		■		■	■		■		N/S	■			■
ALGERIA	■		■		■				■			■						
ANTIGUA & BARBUDA			■		■													
ARGENTINA	■		■		■				■					N/S				
AUSTRALIA	◢		◢		■													
BAHAMAS									■									
BAHRAIN	■		■		■		■		■	■		■		N/S				■
BANGLADESH	■		■	■	■								■					
BARBADOS			■		■													■
BELGIUM			■															
BELIZE	■		■	■	■	■								■				
BERMUDA *							UK	UK	UK	UK	UK	UK	UK			UK	UK	UK

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Is there a need for IMO to address implementation?

IMO Member State self-assessment

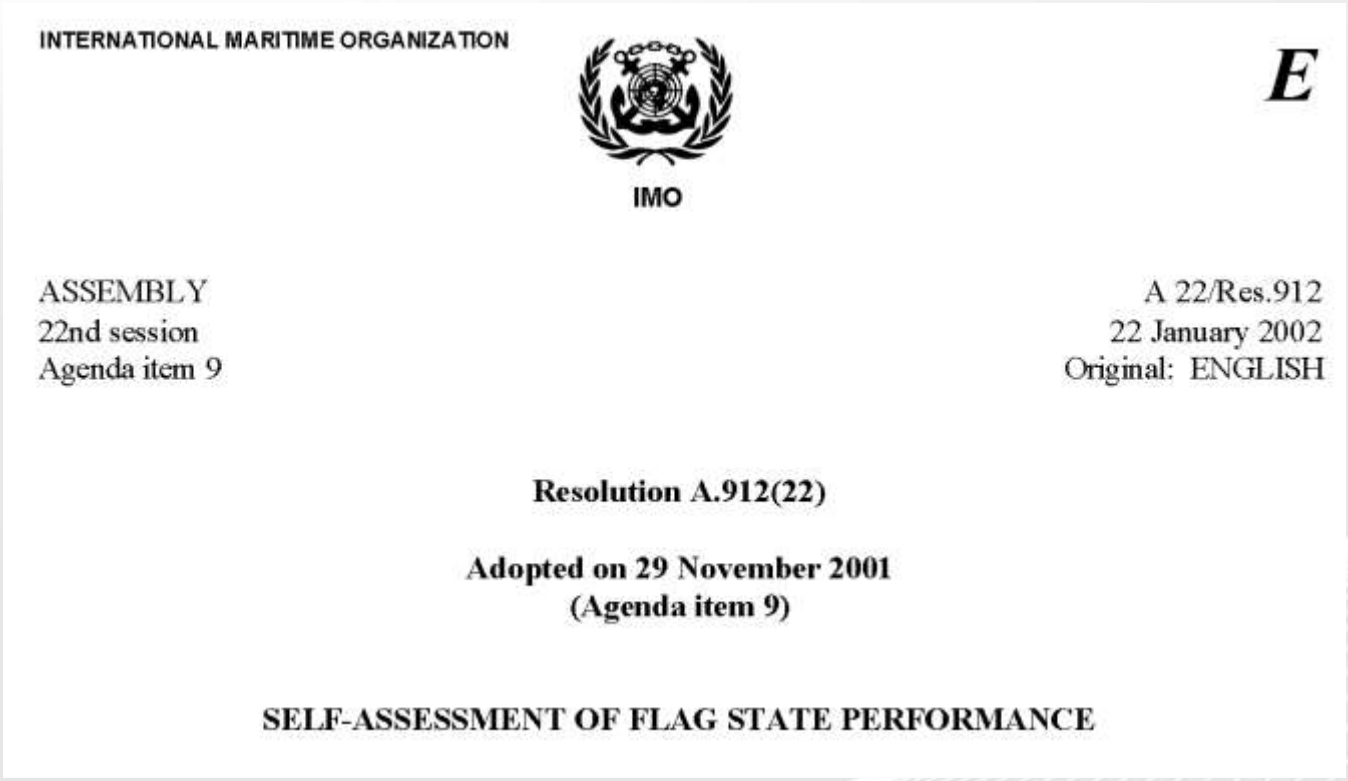
- 1993
  - A.739(18) Guidelines for the authorization of organizations acting on behalf of the Administration
- 1995
  - A.789(19) Specifications on the survey and certification functions of recognized organizations acting on behalf of the Administration
- 1997
  - Res. A 847(20) Guidelines to assist flag States in the implementation of IMO instruments
- 1999
  - Res. A 881(21) Self assessment of flag State performance

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Is there a need for IMO to address implementation?

IMO Member State self-assessment

- 2001 - Res. A 912(22)



INTERNATIONAL MARITIME ORGANIZATION

IMO

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ASSEMBLY
22nd session
Agenda item 9

A 22/Res.912
22 January 2002
Original: ENGLISH

Resolution A.912(22)

Adopted on 29 November 2001
(Agenda item 9)

SELF-ASSESSMENT OF FLAG STATE PERFORMANCE

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The Audit Scheme

From Self-Assessment to Auditing Scheme (I)

- 2002
  - FSI suggested to review Res. A.847(20) – Guidelines on the implementation of mandatory instruments – with the objective to turn it into a Flag State Code
  - Council suggested to develop an IMO Auditing Scheme
- 2003
  - Assembly adopted Res. A.946(23) – Voluntary IMO Member State Auditing Scheme
- 2005
  - Assembly adopted
    - Res. A.973(24) – Code for implementation of mandatory IMO instruments (revised by Resolutions 996(25), 1019(26), 1054(27))
    - Res. A.974(24) – Framework and Procedures for the Auditing Scheme

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The Audit Scheme

From Self-Assessment to Auditing Scheme (II)

- 2009
  - Assembly adopted Res. A.1018(26) – for the institutionalization of the auditing scheme
    - Annex contains a timeframe for an institutionalized scheme

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The Audit Scheme

Framework for the mandatory scheme

- 2013 – 28th Assembly
  - Res. A 1067(28) Framework and Procedures for the IMO member state audit scheme
  - Res. A 1068(28) Transition from the voluntary IMO member state audit scheme to the IMO member state audit scheme
  - Res. A 1070 (28) IMO instruments implementation code (III Code)
  - Res. A 1077 (28) 2013 Non-exhaustive list of obligations under instruments relevant to the IMO instruments implementation code (to be updated at every assembly)

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The Audit Scheme

Assembly 24 - 2005

VOLUNTARY IMO MEMBER STATE AUDIT SCHEME (VIMSAS)

- 2005 – 2013
- Resolution A.974(24) – Framework and Procedures
- Resolution A.973(24) – Code for the implementation of mandatory IMO instruments
- 79 Member States and two Associate Members have volunteered
- 59 Member State, two Associate Members and five dependent territories audited

Assembly 26 - 2009

DEVELOPMENT OF THE MANDATORY AUDIT SCHEME

- 2010 - 2015
- Resolution A.1018(26)
- Revised Code - IMO Instrument Implementation (III) Code
- Amendments to 8 instruments
- Revised Framework and Procedures
- Auditor's Manual – Circular letter No.3425

Assembly 28 - 2013

IMO MEMBER STATE AUDIT SCHEME

- 2016 -
- Resolution A.1067(28) Framework and Procedures for the IMO Member State Audit Scheme
- Resolution A.1068(28) Transition from the Voluntary IMO Member State Audit Scheme to IMO Member State Audit Scheme
- Resolution A.1070(28) IMO Instrument Implementation (III) Code
- Resolutions A.1083 (28), A.1084 (28) and A.1085 (28)

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The Audit Scheme

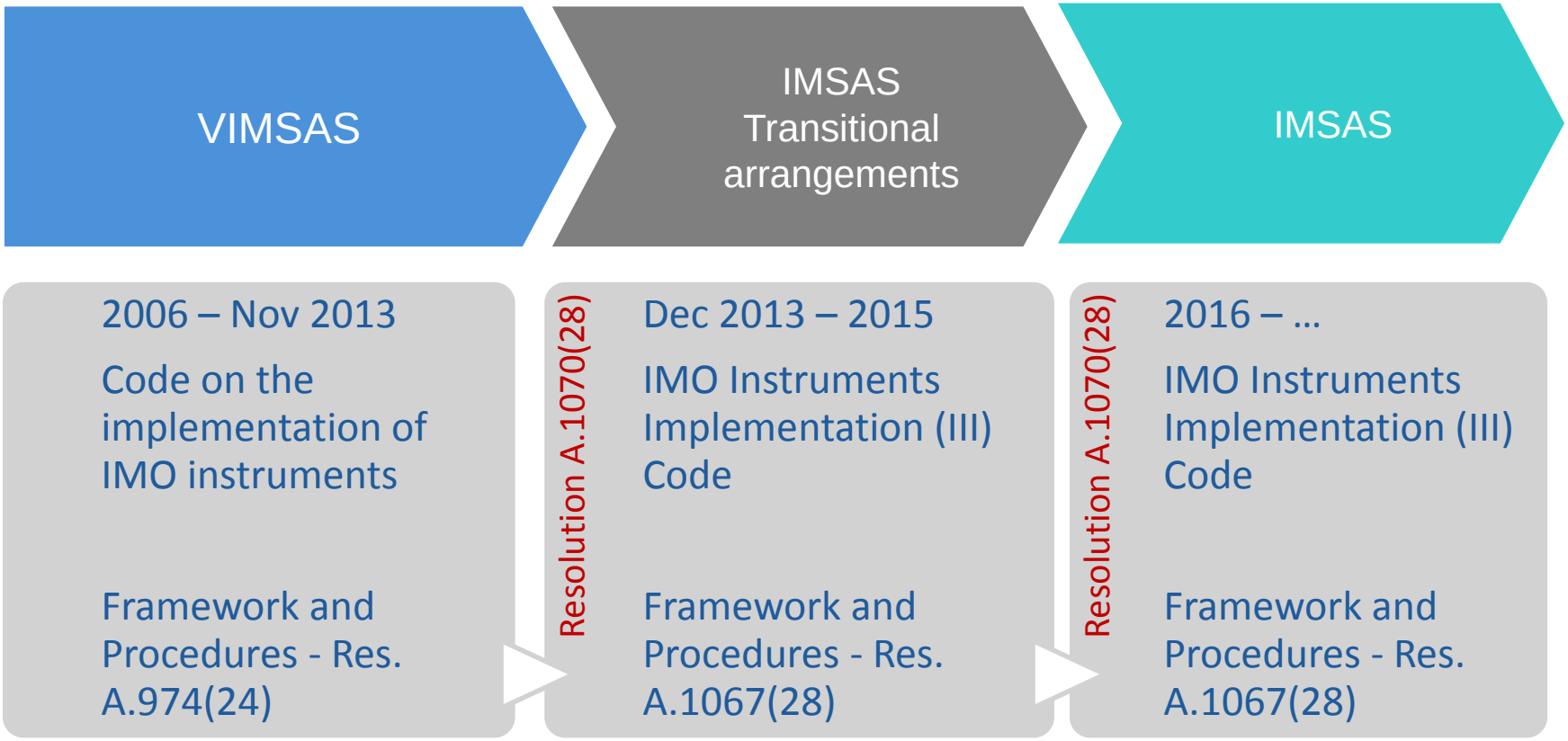
Transitional arrangements

- 2013
  - Resolution A.1068(28)
    - All audits to be carried out according to Res. A.1067(28) – Framework and Procedures
    - Res. A.1070(28) should be used as audit standard

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The Audit Scheme

Applicable audit standard



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The Audit Scheme

Necessary amendments to IMO Instruments

SOLAS 1974	resolution MSC.366(93)
MARPOL	resolution MEPC.246(66) – annexes I - V
	resolution MEPC.247(66) – annex VI
STCW 1978	resolution MSC.373(93)
	[resolution MSC.374(93) - STCW Code]
LL 66	resolution A.1083(28)
LL PROT 1988	resolution MSC.375(93)
Tonnage 1969	resolution A.1084(28)
COLREG 1972	resolution A.1085(28)

The majority of amendments enters into force in 2016, making the III Code mandatory under the instruments.

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The Audit Scheme

Expected entry into force of amendments to IMO instruments

	Adopted	Acceptance	Entry into force
SOLAS 1974	MSC 93 (05/14)	1/7/15	1/1/16
MARPOL and annexes	MEPC 66 (03/14)	1/7/15	1/1/16
LL 1966	A 28 (11/13)	unanimous acceptance 3 years (28/02/14 – 28/02/17) explicit acceptance	12 months (28/02/2018) 12 months
LL PROT 1988	MSC 93 (05/14)	1/7/15	1/1/16
STCW 1978	MSC 93 (05/14)	1/7/15	1/1/16
COLREG 1972	A 28 (11/13)	1/7/15	1/1/16
TONNAGE 1969	A 28 (11/13)	unanimous acceptance 2 years (28/02/14 – 28/02/16) explicit acceptance	12 months (28/02/2017) 12 months

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The Auditing Scheme

Mandatory instruments under the Code

- Resolution A.1077(28) - 2013 Non-exhaustive list of obligations under instruments relevant to the IMO Instruments Implementation Code (to be kept under review):
  - **Annex 1** – Obligations of contracting governments
  - **Annex 2** – Specific flag state obligations
  - **Annex 3** – Specific coastal state obligations
  - **Annex 4** – Specific port state obligations
  - **Annex 5** – Instruments made mandatory under IMO conventions
  - **Annex 6** – Summary of amendments to mandatory instruments reflected in the non-exhaustive list of obligations (Annexes 1 to 4)
  - **Annex 7** – Amendments to IMO instruments expected to be accepted and to enter into force between 1 January 2014 and 1 July 2014

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The Audit Scheme

Instruments included in the scope of the scheme:

- SOLAS 1974
- SOLAS PROTOCOL 1988
- MARPOL 73/78
- MARPOL PROTOCOL 1997
- STCW 1978
- LOAD LINES 1966 (LL66)
- LL 66 PROT 1988
- TONNAGE 1969
- COLREG 1972

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Any questions?

Questions & Answers



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